

NO. 25-CI-002964

JEFFERSON CIRCUIT COURT
DIVISION FOUR (4)
JUDGE JULIE KAELEN*ELECTRONICALLY FILED*

CHARLES TINKER, INDIVIDUALLY AND AS EXECUTOR OF THE ESTATE OF THELMA TINKER, DECEASED, AND DENISE HOUCK, MONICA RUSSELL, BRIAN TINKER, AND CHERI KALILIKANI, EACH INDIVIDUALLY

PLAINTIFFS

v. **PLAINTIFFS' FIRST AMENDED COMPLAINT**

UofL HEALTH-LOUISVILLE, INC.
d/b/a UofL Health,
UNIVERSITY OF LOUISVILLE PHYSICIANS, INC.,
ERICA GETTIS, D.O.,

ROBERT ARIA, M.D.
SERVE: Robert Aria, M.D.
1850 Bluegrass Ave.
Louisville, KY 40215

ADDITIONAL DEFENDANT:

UofL HEALTH, INC.
SERVE: James Rayome
530 South Jackson Street
Louisville, KY 40202

DEFENDANTS

Plaintiffs, Charles Tinker, Individually and as Executor of the Estate of Thelma Tinker, Deceased, and Denise Houck, Monica Russell, Brian Tinker, and Cheri Kalilikani by counsel, and for their First Amended Complaint against the above-named Defendants, state as follows:

1. This First Amended Complaint is in addition to, supplements, and relates back to the original Complaint, which is attached as EXHIBIT 1.

2. Plaintiffs incorporate by reference all allegations contained in the original Complaint as if fully set forth herein.

3. The claims asserted herein against Defendants arise out of the conduct, transactions, and occurrence set forth in the original Complaint.

4. Defendant, UofL Health, Inc. d/b/a UofL Health ("UofL Health") is, and at all times pertinent hereto was, a Kentucky corporation authorized to do business in Kentucky, and in fact doing business in Jefferson County, Kentucky. At all times pertinent hereto, UofL Health held itself out as capable of providing medical, diagnostic, and radiologic care and services to persons such as Timmi. At all times pertinent hereto, UofL Health, through its employees, servants, agents, and ostensible agents, provided medical, diagnostic, and radiologic care and services to Timmi in Jefferson County, Kentucky.

5. Defendant, Erica Gettis, D.O., is a licensed physician practicing medicine in Jefferson County, Kentucky. Acting through her employees and agents, both agents in fact and ostensible agents, and as an agent in fact and ostensible agent for UofL, ULP, and UofL Health, Erica Gettis provided medical, diagnostic, and radiologic care to Timmi in Jefferson County, Kentucky, during all periods relevant to this Complaint.

6. Based on information and belief, Defendant Gettis is, and at all times pertinent hereto was, an employee of Defendants, UofL, ULP, and/or UofL Health.

7. Defendant, Robert Aria, M.D., is a licensed physician practicing medicine in Jefferson County, Kentucky. Acting through his employees and agents,

both agents in fact and ostensible agents, and as an agent in fact and ostensible agent for UofL, ULP, and UofL Health, Robert Aria provided medical, diagnostic, and radiologic care to Timmi in Jefferson County, Kentucky, during all periods relevant to this Complaint.

8. Based on information and belief, Defendant Aria acted as the agent and servant, and/or ostensible agent, of Defendants, UofL, ULP, and/or UofL Health.

9. UofL, ULP, and UofL Health, are vicariously liable for the actions and omissions of its employees, servants, agents, and/or ostensible agents, including the named Defendants and any others not expressly named herein.

10. At all times relevant, each of the Defendants and all the Defendants acted as authorized, actual, implied, and/or apparent agents, servants, and/or employees of each other.

11. All Defendants are jointly and severally liable for the injuries and damages alleged in this Complaint.

12. Defendants Gettis, Aria, UofL, ULP, and UofL Health failed to inform Timmi that the PET scan of her chest on or about August 15, 2022 contained findings that were highly suspicious of lung cancer and, in fact, revealed that Timmi had lung cancer at the time.

13. Defendants Gettis, Aria, UofL, ULP, and UofL Health failed to treat Timmi for the lung cancer that was revealed from the PET scan of her chest on or

about August 15, 2022, and failed to recommend any treatment or treatment options for this cancer to Timmi.

14. Defendants Gettis, Aria, UofL, ULP, and UofL Health failed to promulgate, apply, train, and enforce proper policies, procedures, rules, regulations, and/or standards with respect to the medical, radiologic, and diagnostic care and services provided to Timmi.

15. In their care and treatment of Timmi, Defendant Gettis, Aria, UofL, ULP, and UofL Health acted negligently and failed to exercise the degree of care and skill of a reasonable and prudent physician, radiologist, medical center, hospital, and physician group under the same or similar circumstances.

16. As a result of the wrongful acts and omissions of Defendant Gettis, Aria, UofL, ULP, and UofL Health singularly and in combination, as alleged herein, Charles and Timmi did not learn that Timmi had cancer or that there were findings in the PET scan of her chest on or about August 15, 2022, that were highly suspicious of cancer until on or around May 9, 2024, when Timmi was taken to Norton Women and Children's Hospital for shortness of breath and fatigue.

17. As a result of the wrongful acts and omissions of Defendant Gettis, Aria, UofL, ULP, and UofL Health singularly and in combination, as alleged herein, Timmi did not receive any treatment for the cancer that was present on or about August 15, 2022, and revealed in the PET scan of her chest from that date until after she presented to Norton Women and Children's around 633 days later on May 9, 2024.

18. Timmi suffered personal injuries, which caused her death, as a result of the negligent, grossly negligent, and wrongful acts and omissions of Defendants Gettis, Aria, UofL, ULP, and UofL Health singularly and in combination, as alleged herein.

19. As a direct and proximate result of the negligent, grossly negligent, and wrongful acts and omissions of Defendants Gettis, Aria, UofL, ULP, and UofL Health as alleged herein, Charles has suffered, and will continue to suffer in the future, the loss of her services, assistance, aid, society, love, companionship, affection, and conjugal relationship of his wife, Timmi.

20. The individual and collective negligence and gross negligence of all Defendants, directly and/or by and through their owners, members, employees, servants, agents, and/or ostensible agents as set forth, were together and individually substantial factors in causing the injuries and damages to Timmi and to Plaintiffs as set forth in this Complaint.

COUNT I – NEGLIGENCE AND GROSS NEGLIGENCE
CLAIMS AGAINST ALL DEFENDANTS

21. Plaintiffs adopt, reiterate, and incorporate by reference all other paragraphs of this Complaint.

22. Defendants were each severally and jointly negligent, reckless and grossly negligent, and breached their duty of care to Timmi as alleged in the original Complaint and in this First Amended Complaint, which breach(es) of duty

were together and individually a substantial factor in causing Timmi's injuries and death, leading directly and proximately to the damages alleged.

23. Defendants, UofL, ULP, UofL Health, Dr. Gettis, and Dr. Aria are jointly and severally liable to Plaintiffs for the damages incurred under this Count.

COUNT II – WRONGFUL DEATH CLAIMS
AGAINST ALL DEFENDANTS

24. Plaintiffs adopt, reiterate, and incorporate by reference all other paragraphs of this Complaint.

25. As a result of acts and omissions described in the original Complaint and in this First Amended Complaint, all Defendants are jointly and severally liable to the Estate of Timmi Tinker for the destruction of her power to labor and earn money and to perform household services, and for her medical, burial and funeral expenses.

26. Defendants, UofL, ULP, UofL Health, Dr. Gettis, and Dr. Aria are jointly and severally liable to Plaintiffs for the damages incurred under this Count.

COUNT III-LOSS OF SPOUSAL CONSORTIUM
AGAINST ALL DEFENDANTS

27. Plaintiffs adopt, reiterate, and incorporate by reference all other paragraphs of this Complaint.

28. As a result of acts and omissions described in the original Complaint and in this First Amended Complaint, all Defendants are jointly and severally liable to Plaintiff, Charles Tinker, Individually, for his loss of services, assistance,

aid, society, love, companionship, affection, and conjugal relationship of his beloved wife, Timmi Tinker.

29. Defendants, UofL, ULP, UofL Health, Dr. Gettis, and Dr. Aria are jointly and severally liable to Plaintiffs for the damages incurred under this Count.

COUNT IV – LOSS OF PARENTAL CONSORTIUM CLAIM
AGAINST ALL DEFENDANTS

30. Plaintiffs adopt, reiterate, and incorporate by reference all other paragraphs of this Complaint.

31. As a result of the acts and omissions described in the original Complaint and in this First Amended Complaint, all Defendants are jointly and severally liable to Plaintiff, Denise Houck, to Plaintiff, Monica Russell, to Plaintiff Brian Tinker, and to Plaintiff, Cheri Kalilikani, for her and his loss of services, assistance, aid, society, love, companionship, and affection, of their beloved mother, Timmi Tinker.

32. Defendants, UofL, ULP, UofL Health, Dr. Gettis, and Dr. Aria are jointly and severally liable to Plaintiffs for the damages incurred under this Count.

COUNT V – PUNITIVE DAMAGES CLAIMS
AGAINST ALL DEFENDANTS

33. Plaintiffs adopt, reiterate, and incorporate by reference all other paragraphs of this Complaint.

34. Defendants, Gettis, Aria, UofL, ULP, and UofL Health, are liable to Plaintiff, Charles Tinker, Individually and as Executor of the Estate of Timmi

Tinker, Deceased, for punitive damages as a result of their individual and joint willful and wanton conduct and gross negligence, including, but not limited to, the actions and omissions set forth herein, all of which evidence oppression, malice, and reckless disregard for the safety of persons such as Timmi Tinker.

35. Defendants, UofL, ULP, and UofL Health, are liable for punitive damages attributable to their direct liability as well as their liability based on the acts and omissions of their respective employees, servants, agents, and/or ostensible agents.

36. The heightened standard of proof for punitive damages as required by KRS 411.184(2) is unconstitutional and should be determined to be null and void.

37. The restrictions on recovery of punitive damages against a principal or employee for the conduct of an employee, servant, agent, and/or ostensible agent as set forth in KRS 411.184(3A) are unconstitutional and should be determined to be null and void.

38. In the alternative, each Defendant authorized, ratified, and/or should have anticipated the acts and omissions of their respective employees, servants, agents, and/or ostensible agents as set forth in this Complaint.

WHEREFORE, Plaintiffs respectfully request as follows:

- a. Judgment be rendered against Defendants, UofL Health-Louisville, Inc., d/b/a UofL Health; University of Louisville Physicians, Inc.; Erica Gettis, D.O.; Robert Aria, M.D., and UofL Health, Inc., in an amount which will fairly and reasonably compensate Charles Tinker, Denise Houck, Monica Russell, Brian Tinker, Cheri Kalilikani, and/or the Estate of Thelma "Timmi" Tinker, as the case maybe, for:

- 1) Thelma “Timmi” Tinker’s physical, emotional, and mental pain and suffering, fear and apprehension of impending death, emotional distress, and mental anguish prior to his death;
 - 2) Thelma “Timmi” Tinker’s loss of enjoyment of life and loss of her life expectancy;
 - 3) The destruction of Thelma “Timmi” Tinker’s power to labor and earn money and to perform household services.
 - 4) The medical, funeral and burial costs and expenses;
 - 5) Charles Tinker’s loss of services, assistance, aid, society, love, companionship, affection, and conjugal relationship of his beloved wife, Thelma “Timmi” Tinker;
 - 6) Denise Houck’s loss of services, assistance, aid, society, love, companionship, and affection, of her beloved mother, Thelma “Timmi” Tinker;
 - 7) Monica Russell’s loss of services, assistance, aid, society, love, companionship, and affection, of her beloved mother, Thelma “Timmi” Tinker;
 - 8) Brian Tinker’s loss of services, assistance, aid, society, love, companionship, and affection, of his beloved mother, Thelma “Timmi” Tinker;
 - 9) Cheri Kalilikani’s loss of services, assistance, aid, society, love, companionship, and affection, of her beloved mother, Thelma “Timmi” Tinker; and
 - 10) Punitive Damages.
- b. Plaintiffs’ costs expended, including a reasonable attorneys fee;
 - c. Pre-judgment interest from May 17, 2024, until the date of any judgments rendered are fully paid, all at the statutory rate and compounded annually;
 - d. Post-judgment interest from the date of any judgments rendered until fully paid, all at the statutory rate and compounded annually;
 - e. Trial by jury on all issues triable;
 - f. Leave to amend their pleadings as necessary; and

g. Any and all other relief to which Plaintiffs may appear entitled.

* * * * *

Respectfully submitted,

/s/ Sheldon L. Haden

Ann B. Oldfather (KBA 52553)

Sheldon L. Haden (KBA 88876)

Michael R. Hasken (KBA 94492)

Chancellor R. Peterson (KBA 101018)

OLDFATHER LAW FIRM

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Louisville, KY 40208

(502) 637-7200

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mhasken@oldfather.com

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Counsel for Plaintiffs

CERTIFICATE OF SERVICE

The above signature certifies that, on May 20, 2025, in accordance with KRS 418.075 and CR 24.03, a true and correct PDF copy hereof was served, via email to ServetheCommonwealth@ky.gov:

Hon. Russell Coleman
Office of the Attorney General
700 Capitol Avenue, Suite 118
Frankfort, Kentucky 40601
ServetheCommonwealth@ky.gov

The above signature also certifies that, on May 20, 2025, the foregoing was electronically filed with the Clerk of Court using the KCOJ e-filing system and was served via email, in accordance with the notice of electronic service, or via certified mail, to the following:

Craig L. Johnson
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craig.johnson@steptoe-johnson.com
*Counsel for Defendant, Robert Aria,
M.D.*

Eleanor M. B. Davis
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734 West Main Street, Suite 400
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edavis@tmslawplc.com
*Counsel for Defendants,
UofL Health – Louisville, Inc.
and University of Louisville Physicians,
Inc.*

Robert Aria, M.D.
1850 Bluegrass Avenue
Louisville, KY 40215

UofL Health, Inc.
Registered Agent:
James Rayome
530 South Jackson Street
Louisville, KY 40202

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veselyk@obtlaw.com
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*Counsel for Defendant, Erica Gettis,
D.O.*

NO. _____

JEFFERSON CIRCUIT COURT
DIVISION _____
JUDGE _____*ELECTRONICALLY FILED*CHARLES TINKER, INDIVIDUALLY AND AS EXECUTOR
OF THE ESTATE OF THELMA TINKER, DECEASED, AND
DENISE HOUCK, MONICA RUSSELL, BRIAN TINKER,
AND CHERI KALILIKANI, EACH INDIVIDUALLY

PLAINTIFFS

v.

COMPLAINTUofL HEALTH-LOUISVILLE, INC.
d/b/a UofL Health

DEFENDANTS

SERVE: James Rayome
530 South Jackson Street
Louisville, KY 40202

and

UNIVERSITY OF LOUISVILLE PHYSICIANS, INC.

SERVE: VCT Services Louisville, LLC
2303 River Road, Suite 301,
Louisville, KY 40206

and

ERICA GETTIS, D.O.

SERVE: Erica Gettis
2401 Terra Crossing Blvd.,
Louisville, KY 40245

and

ROBERT ARIA, M.D.

SERVE: Robert Aria, M.D.
1850 Bluegrass Ave.
Louisville, KY 40215

Come the Plaintiffs, Charles Tinker, Individually and as Executor of the Estate of Thelma Tinker, Deceased, and Denise Houck, Monica Russell, Brian Tinker, and Cheri Kalilikani by counsel, and for their Complaint against the above-named Defendants, state as follows:

PARTIES AND JURISDICTION

1. Plaintiff, Charles Tinker ("Charles"), was and is a resident of Louisville, Jefferson County, Kentucky.

2. Thelma "Timmi" Tinker ("Timmi") passed away on May 17, 2024. At the time of her death, Timmi was a resident of Louisville, Jefferson County, Kentucky.

3. At all times pertinent hereto, including at the time of Timmi's death, Charles and Timmi were married.

4. Plaintiff, Denise Houck ("Denise"), was and is a resident of La Grange, Oldham County, Kentucky. Denise is the adult daughter of Charles and Timmi.

5. Plaintiff, Monica Russell ("Monica"), was and is a resident of Prospect, Jefferson County, Kentucky. Monica is the adult daughter of Charles and Timmi.

6. Plaintiff, Brian Tinker ("Brian"), was and is a resident of Torrance, Los Angeles County, California. Brian is the adult son of Charles and Timmi.

7. Plaintiff, Cheri Kalikanni ("Cheri"), was and is a resident of Gardner, Johnson County, Kansas. Chari is the adult daughter of Charles and Timmi.

8. On July 18, 2024, the Jefferson County District Court appointed Charles Executor of Timmi's Estate. The Jefferson County District Court's Order

appointing Charles as the Executor of Timmi's Estate is attached as Exhibit A hereto and incorporated by reference herein.

9. Defendant, UofL Health-Louisville, Inc, d/b/a UofL Health (hereinafter referred to as UofL) is, and at all times pertinent hereto was, a Kentucky corporation authorized to do business in Kentucky, and in fact doing business in Jefferson County, Kentucky. At all times pertinent hereto, UofL held itself out as capable of providing medical, diagnostic, and radiologic care and services to persons such as Timmi. At all times pertinent hereto, UofL, through its employees, servants, agents, and ostensible agents, provided medical, diagnostic, and radiologic care and services to Timmi in Jefferson County, Kentucky.

10. Defendant, University of Louisville Physicians, Inc. (hereinafter referred to as ULP) is, and at all times pertinent hereto was, a Kentucky corporation authorized to do business in Kentucky, and in fact doing business in Jefferson County, Kentucky. At all times pertinent hereto, ULP held itself out as capable of providing medical, diagnostic, and radiologic care and services to persons such as Timmi. At all times pertinent hereto, ULP, through its employees, servants, agents, and ostensible agents, provided medical, diagnostic, and radiologic care and services to Timmi in Jefferson County, Kentucky.

11. Defendant, Erica Gettis, D.O., is a licensed physician practicing medicine in Jefferson County, Kentucky. Acting through her employees and agents, both agents in fact and ostensible agents, and as an agent in fact and ostensible agent for UofL and ULP, Erica Gettis provided medical, diagnostic, and radiologic

care to Timmi in Jefferson County, Kentucky, during all periods relevant to this Complaint.

12. Based on information and belief, Defendant Gettis is, and at all times pertinent hereto was, an employee of Defendants, UofL and ULP.

13. Defendant, Robert Aria, M.D., is a licensed physician practicing medicine in Jefferson County, Kentucky. Acting through his employees and agents, both agents in fact and ostensible agents, and as an agent in fact and ostensible agent for UofL and ULP, Robert Aria provided medical, diagnostic, and radiologic care to Timmi in Jefferson County, Kentucky, during all periods relevant to this Complaint.

14. Based on information and belief, Defendant Aria acted as the agent and servant, and/or ostensible agent, of Defendants, UofL and ULP.

15. UofL and ULP are vicariously liable for the actions and omissions of its employees, servants, agents, and/or ostensible agents, including the named Defendants and any others not expressly named herein.

16. At all times relevant, each of the Defendants and all the Defendants acted as authorized, actual, implied, and/or apparent agents, servants, and/or employees of each other.

17. All Defendants are jointly and severally liable for the injuries and damages alleged in this Complaint.

18. All amounts claimed herein are in excess of the minimal jurisdiction limits of this Court. Venue is proper in Jefferson Circuit Court pursuant to KRS

452.450 and KRS 452.460, since the events or omissions giving rise to this action occurred in Jefferson County, Kentucky.

19. In accordance with KRS 411.167, attached is the affidavit and certificate of merit of undersigned counsel for Plaintiffs, which is incorporated herein.

FACTS APPLICABLE TO ALL COUNTS

20. Prior to August 15, 2022, Timmie entered into a physician-patient relationship with Defendant Gettis.

21. Prior to August 15, 2022, Defendant Gettis ordered a positron emission tomography (PET) scan of Timmi's chest to evaluate Timmi's lungs.

22. On or around August 15, 2022, Timmi underwent a PET scan at the direction of Defendant Gettis.

23. The PET scan was interpreted by Defendant Aria.

24. The PET scan of Timmi's chest on or about August 15, 2022, contained findings that were highly suspicious of lung cancer and, in fact, revealed that Timmi had lung cancer at the time.

25. Defendants Gettis, Aria, UofL, and ULP failed to inform Timmi that the PET scan of her chest on or about August 15, 2022 contained findings that were highly suspicious of lung cancer and, in fact, revealed that Timmi had lung cancer at the time.

26. Defendants Gettis, Aria, UofL, and ULP failed to treat Timmi for the lung cancer that was revealed from the PET scan of her chest on or about August

15, 2022, and failed to recommend any treatment or treatment options for this cancer to Timmi.

27. Defendants Gettis, Aria, UofL, and ULP failed to promulgate, apply, train, and enforce proper policies, procedures, rules, regulations, and/or standards with respect to the medical, radiologic, and diagnostic care and services provided to Timmi.

28. Timmi had a measurable chance of recovery from cancer had her condition been diagnosed timely on or around August 15, 2022.

29. In their care and treatment of Timmi, Defendant Gettis, Aria, UofL, and ULP acted negligently and failed to exercise the degree of care and skill of a reasonable and prudent physician, radiologist, medical center, hospital, and physician group under the same or similar circumstances.

30. As a result of the wrongful acts and omissions of Defendant Gettis, Aria, UofL, and ULP, singularly and in combination, as alleged herein, Charles and Timmi did not learn that Timmi had cancer or that there were findings in the PET scan of her chest on or about August 15, 2022, that were highly suspicious of cancer until on or around May 9, 2024, when Timmi was taken to Norton Women and Children's Hospital for shortness of breath and fatigue.

31. As a result of the wrongful acts and omissions of Defendant Gettis, Aria, UofL, and ULP, singularly and in combination, as alleged herein, Timmi did not receive any treatment for the cancer that was present on or about August 15,

2022, and revealed in the PET scan of her chest from that date until after she presented to Norton Women and Children's around 633 days later on May 9, 2024.

32. Timmi suffered personal injuries, which caused her death, as a result of the negligent, grossly negligent, and wrongful acts and omissions of Defendants Gettis, Aria, UofL, and ULP, singularly and in combination, as alleged herein.

33. As a direct and proximate result of the negligent, grossly negligent, and wrongful acts and omissions of Defendants Gettis, Aria, UofL, and ULP, as alleged herein, Charles has suffered, and will continue to suffer in the future, the loss of her services, assistance, aid, society, love, companionship, affection, and conjugal relationship of his wife, Timmi.

34. As a result of her death, Timmi's estate suffered a destruction of power to labor and earn money and to perform household services and incurred funeral and burial expenses.

35. Plaintiff, Charles Tinker, has suffered the loss of services, assistance, aid, society, love, companionship, affection, and conjugal relations of his wife, Timmi Tinker.

36. Plaintiff, Denise Houck, has suffered the loss of services, assistance, aid, society, love, companionship, and affection, of her beloved mother, Timmi Tinker.

37. Plaintiff, Monica Russell, has suffered the loss of services, assistance, aid, society, love, companionship, and affection, of her beloved mother, Timmi Tinker.

38. Plaintiff, Brian Tinker, has suffered the loss of services, assistance, aid, society, love, companionship, and affection, of his beloved mother, Timmi Tinker.

39. Plaintiff, Cheri Kalilikani, has suffered the loss of services, assistance, aid, society, love, companionship, and affection, of her beloved mother, Timmi Tinker.

40. The individual and collective negligence and gross negligence of all Defendants, directly and/or by and through their owners, members, employees, servants, agents, and/or ostensible agents as set forth, were together and individually substantial factors in causing the injuries and damages to Timmi and to Plaintiffs as set forth in this Complaint.

COUNT I – NEGLIGENCE AND GROSS NEGLIGENCE
CLAIMS AGAINST ALL DEFENDANTS

41. Plaintiffs adopt, reiterate, and incorporate by reference all other paragraphs of this Complaint.

42. Defendants were each severally and jointly negligent, reckless and grossly negligent, and breached their duty of care to Timmi as alleged in this Complaint, which breach(es) of duty were together and individually a substantial factor in causing Timmi's injuries and death, leading directly and proximately to the damages alleged.

43. Defendants, UofL, ULP, Dr. Gettis, and Dr. Aria are jointly and severally liable to Plaintiffs for the damages incurred under this Count.

COUNT II – WRONGFUL DEATH CLAIMS
AGAINST ALL DEFENDANTS

44. Plaintiffs adopt, reiterate, and incorporate by reference all other paragraphs of this Complaint.

45. As a result of acts and omissions described in this Complaint, all Defendants are jointly and severally liable to the Estate of Timmi Tinker for the destruction of her power to labor and earn money and to perform household services, and for her medical, burial and funeral expenses.

46. Defendants, UofL, ULP, Dr. Gettis, and Dr. Aria are jointly and severally liable to Plaintiffs for the damages incurred under this Count.

COUNT III – LOSS OF SPOUSAL CONSORTIUM CLAIM
AGAINST ALL DEFENDANTS

47. Plaintiffs adopt, reiterate, and incorporate by reference all other paragraphs of this Complaint.

48. As a result of acts and omissions described in this Complaint, all Defendants are jointly and severally liable to Plaintiff, Charles Tinker, Individually, for his loss of services, assistance, aid, society, love, companionship, affection, and conjugal relationship of his beloved wife, Timmi Tinker.

49. Defendants, UofL, ULP, Dr. Gettis, and Dr. Aria are jointly and severally liable to Plaintiffs for the damages incurred under this Count.

COUNT IV – LOSS OF PARENTAL CONSORTIUM CLAIM
AGAINST ALL DEFENDANTS

50. Plaintiffs adopt, reiterate, and incorporate by reference all other paragraphs of this Complaint.

51. As a result of the acts and omissions described in this Complaint, all Defendants are jointly and severally liable to Plaintiff, Denise Houck, to Plaintiff, Monica Russell, to Plaintiff Brian Tinker, and to Plaintiff, Cheri Kalilikani, for her and his loss of services, assistance, aid, society, love, companionship, and affection, of their beloved mother, Timmi Tinker.

52. Defendants, UofL, ULP, Dr. Gettis, and Dr. Aria are jointly and severally liable to Plaintiffs for the damages incurred under this Count.

COUNT V – PUNITIVE DAMAGES CLAIMS
AGAINST ALL DEFENDANTS

53. Plaintiffs adopt, reiterate, and incorporate by reference all other paragraphs of this Complaint.

54. Defendants, Gettis, Aria, UofL, and ULP, are liable to Plaintiff, Charles Tinker, Individually and as Executor of the Estate of Timmi Tinker, Deceased, for punitive damages as a result of their individual and joint willful and wanton conduct and gross negligence, including, but not limited to, the actions and omissions set forth herein, all of which evidence oppression, malice, and reckless disregard for the safety of persons such as Timmi Tinker.

55. Defendants, UofL and ULP, are liable for punitive damages attributable to their direct liability as well as their liability based on the acts and omissions of their respective employees, servants, agents, and/or ostensible agents.

56. The heightened standard of proof for punitive damages as required by KRS 411.184(2) is unconstitutional and should be determined to be null and void.

57. The restrictions on recovery of punitive damages against a principal or employee for the conduct of an employee, servant, agent, and/or ostensible agent as set forth in KRS 411.184(3A) are unconstitutional and should be determined to be null and void.

58. In the alternative, each Defendant authorized, ratified, and/or should have anticipated the acts and omissions of their respective employees, servants, agents, and/or ostensible agents as set forth in this Complaint.

WHEREFORE, Plaintiffs respectfully request as follows:

- a. Judgment be rendered against Defendants, UofL Health-Louisville, Inc., d/b/a UofL Health; University of Louisville Physicians, Inc.; Erica Gettis, D.O.; and Robert Aria, M.D., in an amount which will fairly and reasonably compensate Charles Tinker, Denise Houck, Monica Russell, Brian Tinker, Cheri Kalilikani, and/or the Estate of Thelma "Timmi" Tinker, as the case maybe, for:
 - 1) Thelma "Timmi" Tinker's physical, emotional, and mental pain and suffering, fear and apprehension of impending death, emotional distress, and mental anguish prior to his death;
 - 2) Thelma "Timmi" Tinker's loss of enjoyment of life and loss of her life expectancy;
 - 3) The destruction of Thelma "Timmi" Tinker's power to labor and earn money and to perform household services.
 - 4) The medical, funeral and burial costs and expenses;
 - 5) Charles Tinker's loss of services, assistance, aid, society, love, companionship, affection, and conjugal relationship of his beloved wife, Thelma "Timmi" Tinker;
 - 6) Denise Houck's loss of services, assistance, aid, society, love, companionship, and affection, of her beloved mother, Thelma "Timmi" Tinker;
 - 7) Monica Russell's loss of services, assistance, aid, society, love, companionship, and affection, of her beloved mother, Thelma "Timmi" Tinker;

- 8) Brian Tinker's loss of services, assistance, aid, society, love, companionship, and affection, of his beloved mother, Thelma "Timmi" Tinker;
 - 9) Cheri Kalilikani's loss of services, assistance, aid, society, love, companionship, and affection, of her beloved mother, Thelma "Timmi" Tinker; and
 - 10) Punitive Damages.
- b. Plaintiffs' costs expended, including a reasonable attorneys fee;
 - c. Pre-judgment interest from May 17, 2024, until the date of any judgments rendered are fully paid, all at the statutory rate and compounded annually;
 - d. Post-judgment interest from the date of any judgments rendered until fully paid, all at the statutory rate and compounded annually;
 - e. Trial by jury on all issues triable;
 - f. Leave to amend their pleadings as necessary; and
 - g. Any and all other relief to which Plaintiffs may appear entitled.

CERTIFICATION

The undersigned attorneys certify, pursuant to KRS 411.188(2), they have notified by certified mail all parties believed to possibly hold subrogation rights to any award received by Plaintiff as a result of this action and that the failure to assert subrogation rights by intervention, pursuant to CR 24 or otherwise, will result in a loss of those rights with respect to any final award received by Plaintiff as a result of this action. The party notified is as follows: Medicare, P.O. Box 138832, Oklahoma City, OK 73113.

* * * * *

Respectfully submitted,

/s/ Ann B. Oldfather

Ann B. Oldfather (KBA 52553)
Sheldon L. Haden (KBA 88876)
Michael R. Hasken (KBA 94492)
Chancellor R. Peterson (KBA 101018)
OLDFATHER LAW FIRM
1330 South Third Street
Louisville, KY 40208
(502) 637-7200
aoldfather@oldfather.com
shaden@oldfather.com
mhasken@oldfather.com
cpeterson@oldfather.com
Counsel for Plaintiffs

CERTIFICATE OF SERVICE

The above signature certifies that, on April 16, 2025, in accordance with KRS 418.075 and CR 24.03, a true and correct PDF copy hereof was served, via email to ServetheCommonwealth@ky.gov:

Hon. Russell Coleman
Office of the Attorney General
700 Capitol Avenue, Suite 118
Frankfort, Kentucky 40601
ServetheCommonwealth@ky.gov

NO. _____

JEFFERSON CIRCUIT COURT
DIVISION _____
JUDGE _____*ELECTRONICALLY FILED*CHARLES TINKER, INDIVIDUALLY AND AS EXECUTOR
OF THE ESTATE OF THELMA TINKER, DECEASED, AND
DENISE HOUCK, MONICA RUSSELL, BRIAN TINKER,
AND CHERI KALILIKANI, EACH INDIVIDUALLY

PLAINTIFF

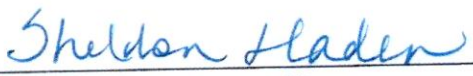
v.

CERTIFICATE OF MERITUofL HEALTH-LOUISVILLE, INC.
d/b/a UofL Health, et al.

DEFENDANTS

After having been duly sworn, the undersigned attorney and Affiant, Sheldon L. Haden, states that Plaintiffs, Charles Tinker, Individually and as Executor of the Estate of Thelma Tinker, Denise Houck, Monica Russell, Brian Tinker, and Cheri Kalilikani, by and through the undersigned attorney, have reviewed the facts of this case and have consulted with an expert qualified pursuant to the Kentucky Rules of Civil Procedure and the Kentucky Rules of Evidence to give testimony as to the standard of care and negligence, and who undersigned Claimant's counsel reasonably believes is knowledgeable in the relevant issues involved in this particular action, and has concluded on the basis of review and consultation that there is a reasonable basis to commence this action.

Further Affiant sayeth naught.


Sheldon L. Haden, Affiant

COMMONWEALTH OF KENTUCKY)
) SS:
COUNTY OF JEFFERSON)

SUBSCRIBED AND SWORN to before me by Sheldon L. Haden on April 15,
2025.

Suzanna Weiss
Notary Public, State-at-Large, Kentucky
My Commission Number: KYNP91345
My Commission Expires: 8/15/2028

92916RC6-FC5C-4E8-A900-6502RA9F8F3D - 000015 of 000084

Presiding Judge HON .JILL IF KAFI IN (630451)

00000000000000000000000000000000

EXHIBIT A

AOC-805.1 Doc. Code: OPP;
Rev. 12-23 OWF; or OFID
Page 1 of 1

Commonwealth of Kentucky
Court of Justice www.kycourts.gov
KRS 394.145; 395.015; 395.016



**ORDER PROBATING WILL;
AND/OR APPOINTING
EXECUTOR/ADMINISTRATOR**

Case No. 24-P-00

Court _____

County Jefferson

Division _____

IN RE: Estate of Thelma Marie Tinker

☐ Petition filed this _____ day of _____, 2____.

☐ Will tendered this _____ day of _____, 2____.

Upon hearing, the Will offered was proven by Summary Memorandum and California Probate Code Section 8220 (b) and **ORDERED**
PROBATED as the Last Will and Testament of Decedent this 17 day of JULY 2024.

The Court appoints: Charles Raymond Tinker as ☒ Executor/Executrix OR

☐ Administrator/Administratrix of said estate and fixes bond in the sum of \$ 300,000 ☐ with surety OR

x without surety.

(Check if Executor/Executrix or Administrator/Administratrix is a nonresident)

☐ The Court designates _____, whose address is _____

_____, as agent for the service of process in any action filed against
the above-appointed Executor/Executrix or Administrator/Administratrix as personal representative or personally if the
action accrued in the administration of the estate.

Date JULY 18, 2024


Yvette De La Guardia
/s/ HON. YVETTE DE LA GUARDIA
electronically signed
7/18/2024 4:58:27 PM ET

Judge's Signature

Distribution: Case File
Revenue Cabinet (Petition and Order)